

Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802
VERIFIED STATEMENT
OF PRIVITY

**AUTHORITY TO FILE AND AUTHORITY OF THE CLERK TO AC-
CEPT**

1. Plaintiff appears in propria persona under Code of Civil Procedure section 1014 and Cal. Const. art. I, sections 3 and 16.
2. This paper is filed under Code of Civil Procedure section 2015.5; California Rules of Court, rule 3.300; California Rules of Court, rule 3.1306; and Code of Civil Procedure section 425.16, subdivision (b)(2).
3. The Clerk's authority to accept this paper is under Government Code sections 68150 and 69845 and California Rules of Court, rules 2.100 through 2.111, 2.118, 2.119, 2.256, and 2.257. Rejection is limited to the enumerated technical grounds in California Rules of Court, rules 2.118 and 2.119; this paper does not present any of those grounds.

1 4. The Court’s authority to consider the substance is under *Aguilar v. Lerner* (2004) 32 Cal.4th
2 974, 986 to 987 (factor 1: same party or privies); and *Daar & Newman v. VRL International*
3 (2005) 129 Cal.App.4th 482, 491.

4 5. This paper is timely filed for the June 24, 2026 hearing under Code of Civil Procedure section
5 1005, subdivision (b), and Department 302’s May 13, 2026 scheduling order.

6 I, Franciscus Dylan Rosario, declare under penalty of perjury under the laws of the State of Cali-
7 fornia:

8 **1. FOUNDATION FOR AGUILAR FACTOR 1 (SAME PARTY OR PRIV-**
9 **IES)**

10 a. I am the Plaintiff in *Rosario v. CSAA Insurance Exchange, et al.* (CGC-25-631802), San
11 Francisco Superior Court, Dept. 302, Hon. Joseph M. Quinn (“802”), and in the related
12 action *Rosario v. Abdelhalim, et al.* (CGC-25-631801), San Francisco Superior Court, Dept.
13 301, Hon. Christine Van Aken (“801”).

14 b. The two actions are related under California Rules of Court, rule 3.300, by the parties’ notices
15 of related case and by the defense’s own footnote references in the 802 papers to the parent
16 appeal *Rosario v. Abdelhalim*, Court of Appeal Case No. A173827.

17 c. CSAA Insurance Exchange (“CSAA”) is a moving party on the 801 special motion to strike
18 that produced the May 12, 2026 minute order, and is the operative defendant on the 802
19 anti-SLAPP, demurrer, and section 436 motions now set for the June 24, 2026 hearing in this
20 Department.

21 **2. SAME COUNSEL AND SAME FIRM IN BOTH CASES**

22 a. The 801 Anti-SLAPP MPA (April 9, 2026), the 801 Demurrer MPA (April 13, 2026), and the
23 801 Anti-SLAPP Reply (May 5, 2026) are signed for the moving defendants by Porter Scott,
24 A Professional Corporation, with signature blocks identifying Chad S. Tapp (SBN 214898)
25 and Tyler J. O’Connell (SBN 346673) as counsel of record.

26 b. The same firm signs the operative defense papers in 802 in this Department, including the
27 802 Anti-SLAPP MPA (April 9, 2026), the 802 Demurrer MPA (April 13, 2026), the 802

1 motion to strike under Code of Civil Procedure section 436 (April 22, 2026), and the 802
2 Anti-SLAPP Reply (May 5/6, 2026). The 802 service list before this Department identifies
3 Mark G. Tapp, Tyler J. O’Connell, Mason Schubert, and Sarah J. Blithe at Porter Scott, P.C.,
4 as electronic-service recipients on file per the seq 009 Consent to Electronic Service in 802.
5 c. The signature blocks bear the same firm letterhead (2180 Harvard Street, Suite 500, Sacra-
6 mento, California 95815) and the same firm telephone and fax numbers in both cases.
7 d. Counsel’s positions are imputed to the represented client. (*Daar & Newman v. VRL Interna-*
8 *tional* (2005) 129 Cal.App.4th 482, 491.)

9 **3. SAME EVIDENTIARY NUCLEUS**

10 Both cases concern the same insured (Subhi Abdelhalim), the same incident date (February 4,
11 2021), the same denial letter (February 25, 2021 from CSAA), and the same physical evidentiary
12 nucleus, namely:

- 13 a. The 911 audio for the February 4, 2021 incident;
- 14 b. The body-worn camera footage of the responding officers; and
- 15 c. The computer aided dispatch records for the February 4, 2021 incident.

16 These three items are the “silent-witness materials” referenced throughout the noticed 801 filings
17 and the operative 802 papers, and are the items whose handling is the subject of the cross-case
18 contradiction set in filing item 07.

19 **4. SAME UNDERLYING PERSONAL INJURY ACTION**

20 The 801 case and the 802 case both reference the underlying personal injury action *Rosario v.*
21 *Abdelhalim*, San Francisco County Superior Court Case No. CGC-21-594102, the parent appeal
22 *Rosario v. Abdelhalim*, Court of Appeal Case No. A173827, the same trial in CGC-21-594102, the
23 same 9-3 defense verdict, and the same in-court motions in limine and open court statements about
24 possession, retention, transfer, production, and prior production of the silent-witness materials.

25 **5. DEFENSE’S OWN RELATED-CASE FOOTNOTES**

26 The 802 defense filings rely on the parent appeal A173827 in their own footnotes, including the
27 802 Anti-SLAPP MPA at p. 1 footnote 1 and p. 2 footnote 3, and the 802 Demurrer MPA at p. 2

1 footnote 2. That reliance confirms defense’s own treatment of the three matters (CGC-21-594102;
2 CGC-25-631801; CGC-25-631802) and the pending appeal A173827 as related proceedings for
3 purposes of position-taking. (See *People ex rel. Strathmann v. Acacia Research Corp.* (2012)
4 210 Cal.App.4th 487, 503 [estoppel applies across related actions involving the same defendants];
5 *Levin v. Ligon* (2006) 140 Cal.App.4th 1456, 1468 to 1471 [related-case estoppel where a party
6 prevailed on a prior factual position].)

7 **6. CSAA’S JOINDER AND FUNDING ROLE IN 801**

8 CSAA was a moving party in the 801 special motion to strike. The 801 motion sought protec-
9 tion for the conduct of CSAA-funded counsel acting within the scope of the underlying defense.
10 The privity, counsel-identity, funding, and joint-litigation-position posture establishes privity for
11 *Aguilar* factor 1, and makes the imputation of counsel’s positions to CSAA direct, not constructive.
12 (See *MW Erectors, Inc. v. Niederhauser Ornamental & Metal Works Co.* (2005) 36 Cal.4th 412,
13 422 [separate proceedings between same parties remain “actually litigated” for estoppel purposes];
14 see also *Mycogen Corp. v. Monsanto Co.* (2002) 28 Cal.4th 888, 896 [issue preclusion’s “actually
15 litigated” element].)

16 **7. CONCLUSION**

17 This statement satisfies element 1 of the *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 986 to 987,
18 judicial estoppel test (same party or privies). It supplies the privity, counsel-identity, and same-
19 evidentiary-nucleus foundation for the cross-case use of the noticed 801 records before this De-
20 partment on June 24, 2026, as set forth in the accompanying memorandum.

21 I declare under penalty of perjury under the laws of the State of California that the foregoing is
22 true and correct.

